IT MANAGED SERVICES AGREEMENT

Agreement No.: MSA-2026-0147
Effective Date: 1 August 2026

This IT Managed Services Agreement ("Agreement") is entered into between:

Client: Apex Manufacturing Solutions Private Limited
Registered Office: 402, Industrial Estate Road, Ahmedabad, Gujarat 380015, India

and

Service Provider: Nexora Technology Services Private Limited
Registered Office: 8th Floor, Tech Park, Hinjawadi, Pune, Maharashtra 411057, India

The Client and Service Provider are individually referred to as a "Party" and collectively as the "Parties."

1. PURPOSE

The Client wishes to engage the Service Provider to provide information technology infrastructure management, application support, monitoring, help-desk, and related technical services. The Service Provider agrees to provide such services in accordance with the terms of this Agreement.

2. SCOPE OF SERVICES

The Service Provider shall provide the following services:

1. 24x7 infrastructure monitoring.
2. Application and server support during agreed service hours.
3. Incident management and resolution.
4. Monthly system health reports.
5. Backup monitoring.
6. Security patch monitoring.
7. Technical help-desk support.
8. Quarterly infrastructure review meetings.

Detailed service levels and response times are described in **Schedule A — Service Level Agreement**.

Any services not expressly included in this Agreement shall require a written Change Request approved by both Parties.

3. TERM

This Agreement shall commence on 1 August 2026 and shall remain in effect for a period of **24 months**, unless terminated earlier in accordance with this Agreement.

The Agreement may be renewed for additional one-year periods upon mutual written agreement of the Parties.

4. FEES AND PAYMENT

The Client shall pay the Service Provider a monthly managed-services fee of:

INR 4,50,000 (Indian Rupees Four Lakh Fifty Thousand only), plus applicable taxes.

Invoices shall be issued on the first business day of each calendar month.

The Client shall make payment within **30 days** from the date of receipt of a valid invoice.

If payment remains outstanding for more than 15 days after the due date, the Service Provider may charge interest at **1.5% per month** on the overdue amount.

The Service Provider shall provide at least 30 days' written notice before changing recurring service fees.

5. SERVICE LEVELS

The Service Provider shall use commercially reasonable efforts to meet the following response targets:

Priority	Description	Response Time Target	Resolution
P1	Critical production outage	30 minutes	4 hours
P2	Major service degradation	1 hour	8 hours
P3	Normal incident	4 hours	2 business days
P4	General request	1 business day	5 business days

Resolution times may be extended where the Service Provider requires information, access, or cooperation from the Client.

6. CLIENT RESPONSIBILITIES

The Client shall:

a. Provide reasonable access to systems required for performance of the Services.

b. Maintain appropriate licenses for third-party software used by the Client.

c. Provide accurate technical information reasonably requested by the Service Provider.

d. Notify the Service Provider of security incidents without unreasonable delay.

e. Designate authorized personnel for service requests and approvals.

7. CONFIDENTIALITY

Each Party may receive confidential business, technical, financial, operational, or customer information belonging to the other Party.

The receiving Party shall:

a. Use Confidential Information only for purposes of performing this Agreement;

b. Protect Confidential Information using reasonable security measures;

c. Not disclose Confidential Information to unauthorized third parties; and

d. Restrict access to personnel who have a legitimate business need to know.

These confidentiality obligations shall remain in effect for **three (3) years** following termination or expiration of this Agreement.

Information that is publicly available without breach of this Agreement shall not be considered Confidential Information.

8. DATA PROTECTION AND SECURITY

The Service Provider shall implement reasonable administrative, technical, and organizational safeguards designed to protect Client data against unauthorized access, alteration, disclosure, loss, or destruction.

The Service Provider shall notify the Client of any confirmed security incident affecting Client Confidential Information within **48 hours** after becoming aware of the incident.

Where personal data is processed, the Parties shall comply with applicable data protection and privacy laws.

The Service Provider shall not sell Client data or use Client data for advertising purposes.

9. INTELLECTUAL PROPERTY

Each Party shall retain ownership of intellectual property owned by that Party before the Effective Date.

Reports, documentation, configurations, and other deliverables specifically created for the Client under this Agreement shall belong to the Client upon full payment of the applicable fees.

The Service Provider shall retain ownership of its pre-existing software, tools, methodologies, frameworks, templates, and know-how.

To the extent any Service Provider pre-existing materials are incorporated into a Client deliverable, the Service Provider grants the Client a non-exclusive, perpetual, royalty-free license to use such materials as part of the deliverable.

10. WARRANTIES

The Service Provider warrants that:

a. The Services shall be performed in a professional and workmanlike manner;

b. Personnel assigned to the Services shall possess appropriate skills and experience; and

c. The Service Provider shall comply with applicable laws relating to its performance of the Services.

Except as expressly stated in this Agreement, no additional warranties are provided.

11. INDEMNIFICATION

The Service Provider shall indemnify and defend the Client against third-party claims arising directly from:

a. infringement of a third party's intellectual property rights by the Services; or

b. bodily injury or property damage caused by the Service Provider's gross negligence or willful misconduct.

The Client shall indemnify and defend the Service Provider against third-party claims arising from materials or instructions supplied by the Client that infringe third-party rights.

12. LIMITATION OF LIABILITY

Except for liability arising from fraud, willful misconduct, breach of confidentiality, infringement of intellectual property rights, or obligations that cannot legally be limited, the aggregate liability of either Party arising from this Agreement shall not exceed the total fees paid or payable by the Client to the Service Provider during the **12 months immediately preceding the event giving rise to the claim**.

Neither Party shall be liable for indirect, incidental, special, consequential, or punitive damages, including loss of profits or loss of business, except to the extent such exclusion is prohibited by applicable law.

13. TERMINATION FOR CONVENIENCE

Either Party may terminate this Agreement without cause by providing **60 days' prior written notice** to the other Party.

The Client shall pay all undisputed amounts due for Services performed up to the effective termination date.

14. TERMINATION FOR CAUSE

Either Party may terminate this Agreement if the other Party materially breaches this Agreement and fails to cure such breach within **30 days** after receiving written notice.

Either Party may terminate the Agreement immediately if the other Party becomes insolvent, enters liquidation, or ceases substantially all business operations.

15. EFFECT OF TERMINATION

Upon termination:

a. The Service Provider shall cease performing the Services except as reasonably necessary for transition.

b. Each Party shall return or securely destroy Confidential Information belonging to the other Party, subject to legally required retention.

c. The Client shall pay all undisputed amounts accrued through the termination date.

d. The Service Provider shall provide reasonable transition assistance for up to 30 days.

Transition assistance shall be charged at the Service Provider's then-current professional service rates unless otherwise agreed in writing.

16. AUDIT RIGHTS

The Client may, upon at least 10 business days' written notice, audit the Service Provider's compliance with the security and confidentiality obligations of this Agreement.

Audits shall occur during normal business hours and shall not unreasonably interfere with the Service Provider's operations.

The Client shall not conduct more than one audit in any 12-month period unless a security incident or material compliance issue has occurred.

17. SUBCONTRACTING

The Service Provider may engage subcontractors to perform portions of the Services provided that:

a. The Service Provider remains responsible for the subcontractors' performance;

b. Subcontractors are bound by confidentiality obligations; and

c. Subcontractors with access to Client Confidential Information comply with applicable security requirements.

18. FORCE MAJEURE

Neither Party shall be liable for failure or delay in performing its obligations where such failure results from circumstances beyond its reasonable control, including natural disasters, war, government actions, widespread telecommunications failures, or other events of similar nature.

The affected Party shall notify the other Party as soon as reasonably practicable.

19. DISPUTE RESOLUTION

The Parties shall first attempt to resolve disputes through good-faith negotiations between their designated senior representatives.

If the dispute is not resolved within 30 days, the dispute shall be referred to arbitration in accordance with the **Arbitration and Conciliation Act, 1996**.

The seat of arbitration shall be **Ahmedabad, Gujarat, India**.

The arbitration shall be conducted in English by a sole arbitrator mutually appointed by the Parties.

20. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of **India**.

Subject to the arbitration provisions above, the courts located in Ahmedabad, Gujarat shall have jurisdiction.

21. NOTICES

All notices under this Agreement shall be provided in writing and delivered by registered post, recognized courier, or email to the authorized representatives designated by the Parties.

A notice shall be considered received when delivery is confirmed by the applicable method.

22. ASSIGNMENT

Neither Party may assign this Agreement to a third party without the prior written consent of the other Party, except that either Party may assign the Agreement to an affiliate or successor as part of a merger, restructuring, or sale of substantially all of its business.

23. ENTIRE AGREEMENT

This Agreement, together with its schedules and written amendments, constitutes the entire agreement between the Parties concerning the Services and supersedes all prior discussions, proposals, and agreements relating to the subject matter.

Any amendment must be made in writing and signed by authorized representatives of both Parties.

24. SEVERABILITY

If any provision of this Agreement is determined to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

25. SIGNATURES

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized representatives.

For Apex Manufacturing Solutions Private Limited

Name: Rahul Mehta
Title: Chief Financial Officer
Signature: _____
Date: 01 August 2026

For Nexora Technology Services Private Limited

Name: Priya Shah
Title: Vice President — Enterprise Services
Signature: _____
Date: 01 August 2026

SCHEDULE A — SERVICE LEVEL AGREEMENT

A. Service Availability

The Service Provider shall target **99.5% monthly availability** for covered production monitoring services, excluding scheduled maintenance and circumstances outside the Service Provider's reasonable control.

B. Scheduled Maintenance

Scheduled maintenance shall normally be performed between **11:00 PM and 5:00 AM IST**.

The Service Provider shall provide at least **48 hours' advance notice** for planned maintenance expected to cause service interruption.

C. Monthly Reporting

The Service Provider shall provide a monthly report containing:

- Incident statistics
- Response-time performance
- Resolution-time performance
- System availability
- Security incidents
- Backup status
- Open critical issues
- Recommended improvements

D. Service Credits

If monthly availability falls below 99.5% due solely to the Service Provider's failure to meet the agreed service level, the Client shall be eligible for a service credit equal to **5% of the monthly managed-services fee**.

Service credits shall be applied against the following month's invoice.

E. Exceptions

Service levels shall not apply where service interruption results from:

1. Client-caused outages;
2. Unauthorized modifications made by the Client;
3. Third-party services outside the Service Provider's control;
4. Force majeure events;
5. Emergency security maintenance; or
6. Scheduled maintenance properly notified to the Client.

END OF AGREEMENT